

The Court finds no factual allegations in the SAC that Carrington acted with oppression or malice. Mr. Giglio asserts that he “alleges that Carrington engaged in various acts because Carrington was motivated by a desire to engineer a foreclosure of his home in order to recoup the late, foreclosure, and other fees from the foreclosure sale. Foreclosing and then evicting a person from their home without justification is despicable conduct.” (Opposition at 3:20-23.) He fails, however, to cite to any such allegations. No such allegations are immediately apparent to the Court. Moreover, it is not the Court’s obligation to search for them. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Based on the foregoing, the Court does not find that the factual allegations of the SAC are sufficient to support a prayer for punitive damages. The Court, therefore, finds good cause for striking that prayer from the SAC.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*).) The Court finds, from the allegations of the SAC, a possibility that Mr. Giglio can amend to allege facts that would support a finding of malice or oppression. Therefore, the Court grants Mr. Giglio leave to amend the SAC for this limited purpose.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is DENIED WITHOUT PREJUDICE.

The Court has never obtained Jurisdiction to hear the instant Motion. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].)

The Court has given counsel *three* opportunities to properly serve Notice of the Motion and hearing. As noted in the Minute Order of May 5, 2026, the original service did not provide adequate notice of the original hearing. Despite the Court’s express order that Counsel provide adequate notice in advance of the June 2, 2026, hearing, there is *no proof* in the Court’s file that *any notice* of that hearing was provided.

Counsel’s latest effort at providing formal Notice of hearing fails as service was made by email with only 16 days’ notice (June 19, 2026, was a Court holiday), without providing two additional days as required by Code of Civil Procedure section 1010.6, subd. (a)(3)(B).)

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DEFENDANT’S MOTION TO PRECLUDE EVIDENCE OF ACCOUNT PURSUANT TO CCP § 454

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant James Potter (“Defendant”) moves, pursuant to Code of Civil Procedure section 454,³ for an order precluding Plaintiff Velocity Investments, LLC (“Plaintiff”) from giving evidence of the account alleged in the Complaint. The motion is made on the grounds that Plaintiff failed and refused to deliver a verified Bill of Particulars within ten (10) days after a written demand was served by Defendant.

B. LEGAL STANDARD

Section 454 is a discovery procedure outside of the Discovery Act dating back to early common law. (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 8 Discovery, § 8:1765.) It enables defendants who have been sued generally on an account to force a plaintiff to itemize the account on which the complaint is based. (*Ibid.*) Although interrogatories and depositions can now be used for the same purpose, the bill of particulars remains an alternative and supplemental procedure. (*Ibid.*)

The express language provides: “It is not necessary for a party to set forth in a pleading the items of an account therein alleged, but he must deliver to the adverse party, within ten days after a demand thereof in writing, a copy of the account, or be precluded from giving evidence thereof.” (§ 454.) The court has power to make such an order at trial or any time beforehand. (*Burton v. Santa Barbara Nat’l Bank* (1966) 247 Cal.App.2d 427, 433; see also Cal. Judges Benchbook: Civ. Proceedings-Discovery, Ch. 23 Managing Discovery Under Other Statutes, § 23.23.)

C. DISCUSSION

Plaintiff’s Complaint asserts a single cause of action for breach of contract with a demand for \$40,905.55. (11/24/25 Compl.) The Complaint alleges that, on October 31, 2022, Cross River Bank issued a Consumer Loan to Defendant, account number -7034. (*Id.*, ¶ 13, Exh. A.)

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.